Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Sarah-Jane Hammond
Occupation	Tax Consultant
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Sarah-Jane Hammond and I am 32 years old.

3. In March 2021, I was diagnosed with Autism by Dr Ritu Campbell, who encouraged me to take the diagnosis report of hers to the National Disability Insurance Scheme (NDIS). I then filled out the Access Request Form (ARF) after contacting the NDIS and went into the Rockingham NDIS branch and submitted my paperwork in person.

4. In April 2021, I was accepted as a participant of the NDIS and was given my NDIS number 431685148. My first plan was from 22 April 2021 to 27 July 2022 which was to the value of $61,325.91. My current NDIS plan is from 11 October 2022 to 10 October 2024 which is to the value of $36,895.60.

5. My understanding of the NDIS is to provide funding to pay for services in assisting and supporting me with everyday living. The NDIS is there to cover the Gaps that Medicare and other services cannot assist me with, I understand that it is not for daily living expenses.

.....
Signature

.....
Witness

C. Bruckner

6. In April 2021, my cleaner who I had built a great relationship with was no longer able to provide me with services. I needed to find my own provider and I ended up looking around to find someone else who I was able to trust to come into my home and clean.

7. In December 2021, my mum gave an extended family member who was Elanore Smith (Elanore), worked for a company called Forward Focused Group (FFG), my contact number. I received a called from Elanore and in this discussion, we spoke about what I required and the supports I needed. Elanore said she would give my contact details to someone at FFG.

8. In early February 2022, I received a call from a man called Alex Bowers (Alex) who worked for FFG, in this discussion we spoke about Alex coming to meet me at my home and discuss in further depth of what I was needing.

9. The following week Alex came to my home by himself, we discussed what services I was requiring, and I explained to him I needed cleaning and that this was my main priority. Alex said FFG could help and promised me he would organise cleaning services as they had a cleaner that was employed by FFG directly and had been vetted. In this meeting, I also signed an electronic version of the Service Agreement which I read through and there was cleaning services listed on there as I insisted on reviewing it before signing. On where I signed for the Service Agreement, Alex had little box connected to the laptop like the ones at the bank. I signed this box, but I do not remember ever receiving a copy of that Service Agreement. I do remember something I saw that said please sign.

10. About three weeks later in March 2022 after my meeting with Alex, life was busy, and I really needed the supports we spoke about, and I had not heard from him or the alleged cleaner he mentioned in our meeting. I called Alex and he said he has put me on the list for the cleaner to contact me and he didn't know why I hadn't heard from them. Alex also said I have also filled in this paperwork for you so you can receive Support Co-Ordination. I responded to him and said this was not what we discussed in our meeting, as I only wanted a cleaner and a small amount of yard

work to be done. His response was that was all in the works, we are getting a Support Co-Ordinator to assist with those services.

11. In April 2022, I called Alex from my honeymoon asking him what was happening with my cleaning services as nothing was happening and his response was that we never promised you a cleaner or any of these services. He said that we only said we would assist you in getting Support Co-Ordination. I said to him that my plan was due to be finished soon and I told him not to do anything with my plan and I would sort it out.

12. On the 26 April 2022, when my plan was due to end, I sent a text to Alex stating I will not be continuing services with FFG. Alex sent an email stating sorry to hear that I was leaving and that if I needed anything over the next 4 weeks to let him know. In this email Alex also states that I needed to pay $4,000 cancellation fee personally if I wanted to cease immediately. In this email a copy of a Service Agreement was attached, which was the first time I had ever seen this document.

ANNEXURE: I NOW PRODUCE SH001 A COPY OF THE TEXT MESSAGES SENT TO ALEX CANCELLING AGREEMENT WITH FFG.

ANNEXURE: I NOW PRODUCE SH002 A COPY OF THE EMAIL SENT TO ME ON THE 26 APRIL 2022 FROM ALEX AT FFG.

ANNEXURE: I NOW PRODUCE SH003 A COPY OF THE SIGNED SERVICE AGREEMENT DATED 3 MARCH 2022.

13. On 13 June 2022, I received an email from my plan manager stating there was an outstanding invoice for FFG for $4,003.04. I called FFG immediately and asked them what this invoice was for, their response was it was cancellation fees. I then responded and said my plan has ended and they could not be charging for anything. They said Alex would call me which I never heard from him, so I decided to forward it to the NDIS Fraud team. A few weeks later Alex called me and said we have reduced the amount to $553.27 and that I needed to have my plan manager pay it immediately. I logged into my NDIS portal and noticed the $4,003.04 invoice

had been dropped down to $553.27. I went back to Alex and told him I will not be approving this invoice as it is after my plan has ended and I never received any services from FFG. Alex then said I have to pay it or I will be taken to court, I then told him I reported FFG to NDIS and I would be happy to go to court. I told him that if there were any more questions that Alex would need to contact my plan manager as I was finding this stressful.

ANNEXURE: I NOW PRODUCE SH004 A COPY OF THE INVOICE MY PLAN MANAGER RECEIVED FROM FFG.

14. Since my discussions with Alex in June 2022, I have never spoken with Alex at FFG and I have never spoken to anyone else from FFG.

15. On 17 October 2022, Christine Bruckner (Investigator Bruckner) an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a conversation over the phone about these claims.

16. On 18 October 2022, Investigator Bruckner and I met in person, and she showed me a list of claims which were submitted by FFG. I was able to see on the list, claims for 'Capacity Building and Training in Self-Management and Plan Management' have been made by FFG. I can confirm I have never received these services or any other services from FFG.

17. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Sarah-Jane Hammond

Statement taken and signature witnessed by me about 9:25 am on 18 October 2022 at an address in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

.....
Signature
Sarah-Jane Hammond

.....
Witness
Christine Bruckner

SH003 1 of 9

Document created: 1.11.2020
Updated: 17.12.2021

Forward Focused Individual Service Agreement
NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	Sarah-Jane Hammond

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	Sarah-Jane Hammond
Participant Plan Number	431685148
Service/plan Dates	22/04/2021 - 22/04/2022

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The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

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(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Assistance with Daily Life	01_134_0117_8_1 - Self-Management Capacity Building (Support Coordination)

4. Services

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The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Assistance with Daily Life	$6,509.00	100 Hours of Assistance with Daily Life

FFG Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

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An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

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We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

14. Acknowledgement

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Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Sarah-Jane Hammo

[Participant / Participant's representative]

[Participant / Participant's representative]

Name: Alex Bowers

Signature: _____

Authorised person from FFG

Authorised person from FFG

Date: 03/03/2022

FFG contact details:

FFG Address	**2/210 Jull street, Armadale, 6112, WA**
Contact Name	Accounts
Contact Number	08-61177786 Accounts@ffg.net.au

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan
- ☑ I have a copy of this Service agreement for my records or a copy will be sent to me

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I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Sarah-Jane Hammond Signature: _____

[Participant / Participant's representative] ***[Participant / Participant's representative]***

Date: 3/3/2022

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

HELLOSIGN

Audit trail

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